Rebuttal Kit: Answering the Negative

Motion: *The minimum age of criminal responsibility in the Philippines should remain unchanged*
For: Affirmative (we want it changed: 15 to 12 with a discernment test) | Against: the Negative's case for keeping 15

PART 1: NEGATIVE ARGUMENTS AND HOW TO DEFEAT THEM

Format for each clash: **their claim** → **the flaw** → **your line**. Say the line almost word for word.

Negative's claim	The flaw	Your line
"Exemption is not exemption from accountability: there's intervention, civil liability, and Bahay Pag-asa."	Intervention is not a finding of responsibility. Under Sec. 20-A the child is legally "deemed a neglected child" — the law calls the offender a victim. Civil liability for exempt minors generally falls on parents or guardians (Revised Penal Code, Art. 101), and poor families often cannot pay. And the Negative's own case admits many Bahay Pag-asa remain unbuilt or underfunded.	"If the accountability they describe were working, they would not need to admit the system is unfinished. Calling a killer a 'neglected child' is not accountability; it is a label."
"A 14-year-old is too young to work, vote, contract, or marry — so too young to be a criminal."	False analogy. Each legal age measures a different capacity. Voting and contracts require complex adult judgment; child-labor limits protect against economic exploitation. Knowing that killing or raping is wrong is a basic moral capacity. Philippine law already sets different ages for different capacities (e.g., RA 11648 of 2022 set the age of sexual consent at 16).	"Not knowing how to sign a contract is not the same as not knowing that murder is wrong. Different ages measure different capacities."
"The Constitution (Art. XV, Sec. 3(2)) demands special protection for children."	Selective reading. The same Constitution protects life and property (Art. II, Sec. 5) and the dignity of every person (Art. II, Sec. 11) — including victims, many of whom are children. Protection from "conditions prejudicial to development" includes protection from a system that never corrects a child who did grave wrong.	"The Constitution protects the child who was harmed just as much as the child who caused the harm."
"The UN CRC and General Comment No. 24 say the age should be at least 14 and must not be lowered."	The CRC text (Art. 40(3)(a)) fixes no number. General Comments are interpretive guidance, not binding treaty text. The Committee's General Comment No. 10 (2007) treated 12 as the acceptable minimum. Art. 41 is a savings clause (it preserves more favorable national laws from being overridden by the Convention); it does not freeze national legislation.	"Show us the article of the treaty that says fifteen. There is none. A recommendation is not a ratified obligation."
"Brain science shows children's prefrontal cortex is still developing."	Proves too much. Brains keep developing into the twenties, yet the Negative accepts that 15- to 17-year-olds can be liable when discernment is proven. So their real standard is the discernment test, not brain maturity. Science shows *reduced* capacity, which justifies reduced dispositions, not total immunity.	"If developing brains meant no responsibility, the Negative would have to defend immunity up to age 25. They don't. They accept discernment — and so do we, from 12."
"Section 20-C already punishes adults who use children, so syndicates are handled."	20-C works only when the adult is identified and convicted. The guaranteed exemption of the child remains an incentive. Our model keeps 20-C; the two are not alternatives.	"We keep 20-C. We simply stop handing exploiters a guarantee that the child they use can never be held to account."

Negative's claim	The flaw	Your line
"Children commit only about 2% of crimes, and cases fell after RA 9344."	A small share is not zero harm; each case has a victim. JJWC figures show about 5,698 cases by June 2025, already above all of 2024. Careful: do not claim RA 9344 caused the rise; claim the framework is not preventing it. Also, if they credit the law for the earlier decline, that is the same post hoc reasoning they would reject from us.	"Two percent of crimes is still thousands of victims. And the trend is now going up, not down."
"Lowering the age punishes poverty; it chooses punishment over protection."	False dilemma. Our model is rehabilitative: discernment test, diversion, suspended sentence, sealed records, no adult jails. Accountability and protection can coexist; restorative justice requires both.	"Our choice is not punishment or protection. It is protection **with** accountability — which is what restorative justice means."
"Fix implementation first: fund Bahay Pag-asa instead of changing the age."	Also a false dilemma. Congress can fund facilities and reform the age at the same time; the two are not mutually exclusive.	"Fixing the system and fixing the law are not rivals. We can — and must — do both."
"Culpability requires full knowledge and free consent; children lack it."	They assume what must be proved. The discernment test asks exactly whether this child had knowledge and freedom. If the prosecution fails to prove it, the child is exempt.	"We agree with their moral test. We only ask that it actually be applied to the child, instead of assumed away by a birthday."
"The State is parens patriae; a parent doesn't punish the child for the parent's failure."	A good parent protects *and* corrects. Protection that never corrects is not good parenting.	"Every good parent knows: love without correction is not protection. It is neglect."

PART 2: FALLACIES TO CALL OUT IN THE NEGATIVE'S CASE

If the Negative says...	Fallacy	How to call it out (politely)
"Too young to work, so too young to be a criminal."	False analogy	"Different ages measure different capacities."
"So it's prison or protection?"	False dilemma	"Our model has rehabilitation and accountability. That third option is our whole case."
"Lowering it to 12 means jailing toddlers next."	Slippery slope	"Our proposal is 12, with a discernment test and no adult jails. Please debate what we proposed."
"The Affirmative wants children in prison."	Straw man	"Our model says no adult jails. That's on the record."
"The UN says 14, so case closed."	Appeal to authority	"Respectfully, a recommendation is not a treaty article. The treaty fixes no number."
"Cases fell after RA 9344, so the law works."	Post hoc	"Sequence is not cause. Cases are now rising again under the same law."
"Think of the poor child in a cell..." (no data)	Appeal to pity	"We share that concern — that's why our model bans adult jails. But pity for one child cannot erase justice for another."
"Brains develop until 25."	Proves too much	"Then would you exempt everyone under 25? Your own position accepts discernment at 15."

PART 3: CROSS-EXAMINATION QUESTIONS (FOR THE NEGATIVE)

Ask short, closed questions. Get the "yes" or "no," then move on. Do not argue during the answer.

1. Under Section 20-A of RA 10630, a 14-year-old who commits murder is "deemed a neglected child." Yes or no?
2. Your side accepts that a 16-year-old who acted with discernment can be held liable, even though that brain is still developing. Correct?
3. Can you name the article of the UN Convention on the Rights of the Child that sets the age at fifteen?
4. Is a CRC General Comment a ratified treaty provision, or interpretive guidance?
5. Does a 14-year-old generally know that killing another person is wrong?
6. Under our proposal, children found responsible go to Bahay Pag-asa, not adult jails. Where in our model is a child sent to prison with adults?
7. If an adult who used a child is never identified, who answers for the crime under the current law?
8. Can Congress fund Bahay Pag-asa and amend the age in the same law? Is there anything that prevents both?

PART 4: REBUTTAL SPEECH SCRIPT (about 2 to 3 minutes)

Use after the Negative's opening. Adjust each point to match what they actually said.

Thank you, honorable adjudicators. Our worthy opponents built their case on three claims. Let me answer each.

First, they said exemption is not the absence of accountability. But listen to what the law actually does. Section 20-A takes a child who committed murder and declares that child a "neglected child." The law does not say the child did wrong; it says the child was wronged. Civil liability generally falls on parents who are often too poor to pay. And by their own admission, the Bahay Pag-asa they rely on are still unfinished. That is not accountability. That is an empty promise.

Second, they said the law and our treaties forbid change. Show us the article. Article 40 of the Convention on the Rights of the Child requires a minimum age — it never says fifteen. A General Comment is guidance, not a treaty. And our own Constitution protects the dignity of every human person, including the victim, who is very often a child too.

Third, they said children's brains are still developing. We agree. But so are the brains of sixteen- and seventeen-year-olds, and our opponents accept that they can be held liable when discernment is proven. So the real question is not brain science. It is whether we will ask the discernment question at twelve. We say: ask it. If the child did not understand, the child stays exempt and receives intervention, exactly as today. If the child did understand, the child is corrected — in a youth facility, not an adult jail.

Our opponents offer a choice between protecting children and punishing them. We reject that choice. We offer protection with accountability. Because a law that cannot say "this was wrong" cannot teach a child to do right. Change the age. Keep the care. Restore the justice. Thank you.

RULES FOR YOUR REBUTTAL

• Quote their words exactly before answering — this prevents straw-man accusations. • Concede what is true (brain development, victims of poverty), then show why it does not defeat the motion. • Never claim RA 9344 caused crime to rise; say it is not preventing it. • End every clash by returning to your model: discernment test, rehabilitation, no adult jails.